

UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

CERTAIN PORTABLE POWER STATIONS AND
PACKAGING THEREFOR

Inv. No. 337-TA-563

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ORDER NO. 3: SETTING PROCEDURAL SCHEDULE

(May 3, 2006)

This investigation was instituted by the Commission on March 9, 2006 and the notice of investigation was published in the Federal Register on March 14, 2006.¹ The Administrative Law Judge set a twelve-month target date of March 14, 2007 for completion of this investigation by the Commission in Order No. 2.² Order No. 2 also requested proposed schedules from the parties by April 17, 2006. Separate discovery statements were received from Complainant Road master (USA) Inc. ("Roadmaster") and the Commission Investigative Staff ("Staff").³ Based on a review of the proposed procedural schedule, jointly agreed to by Road master and Staff, the undersigned hereby adopts the following procedural schedule:⁴

Event	Deadline Date
First settlement conference	By May 23, 2006

¹ See 71 Fed. Reg. 13,166.

² See Order No. 2 (March 14, 2006).

³ Respondent Sinochem Ningto LTD ("Sinochem") has not yet made an appearance in this investigation. It did not file an answer and did not file a discovery statement.

⁴ The parties should note that, due to a scheduling conflict, the undersigned will not be able to have the hearing in September as anticipated and has modified the proposed deadlines accordingly.

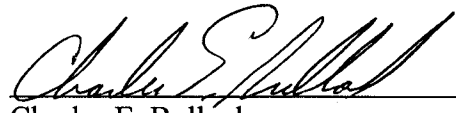
Event	Deadline Date
Submission of first settlement conference joint report	May 30, 2006
File identification of expert witnesses, including their expertise and curriculum vitae	June 9, 2006
Second settlement conference	By June 15, 2006
File notice of prior art	June 16, 2006
Submission of second settlement conference joint report	June 22, 2006
Exchange of initial expert reports	June 30, 2006
File tentative list of witnesses a party will call to testify at the hearing, with an identification of each witness' relationship to the party	July 3, 2006
Deadline for filing summary determination motion	July 10, 2006
Exchange of rebuttal expert reports	July 14, 2006
Fact discovery cutoff and completion	July 14, 2006
Deadline for motions to compel discovery	July 28, 2006
Expert discovery cutoff and completion	July 28, 2006
Third settlement conference	By July 28, 2006
Exchange of exhibit lists among the parties	July 31, 2006
Submission of third settlement conference joint report	August 4, 2006
Submit and serve direct exhibits (including witness statements), with physical and demonstrative exhibits available -- Complainant(s) and Respondent(s)	August 7, 2006
Submit and serve direct exhibits (including witness statements), with physical and demonstrative exhibits available -- Staff	August 9, 2006
File objections to direct exhibits (including witness statements)	August 11, 2006
Submit and serve rebuttal exhibits (including witness statements), with rebuttal physical and demonstrative exhibits available -- all parties	August 15, 2006
File pre-trial statements and briefs -- Complainant(s) and Respondent(s)	August 15, 2006

Event	Deadline Date
File requests for receipt of evidence without a witness	August 15, 2006
File responses to objections to direct exhibits (including witness statements)	August 16, 2006
Deadline for motions <i>in limine</i>	August 18, 2006
File objections to rebuttal exhibits (including witness statements)	August 18, 2006
File high priority objections statement	August 18, 2006
File pre-trial statement and brief -- Staff	August 22, 2006
File responses to objections to rebuttal exhibits (including witness statements)	August 23, 2006
File responses to motions <i>in limine</i>	August 23, 2006
File responses to high priority objections statement	August 23, 2006
Tutorial on technology (if necessary)	August 25, 2006 at 9:00 a.m. in Courtroom B
Pre-trial conference	August 25, 2006, following the tutorial
Trial	August 28-September 1, 2006 at 8:30 a.m. in Courtroom B
File initial post-trial briefs, proposed findings of fact and conclusions of law, and final exhibit lists	September 19, 2006
File reply post-trial briefs, objections and rebuttals to proposed findings of fact	September 29, 2006
Initial Determination due	December 14, 2006
Target date for completion of investigation	March 14, 2007

For the dates set forth above that require a submission or filing, the date set forth is the date that the submission or filing must be filed at the Commission (by the close of business) and is not

the date that such submission or filing is merely served.

SO ORDERED.



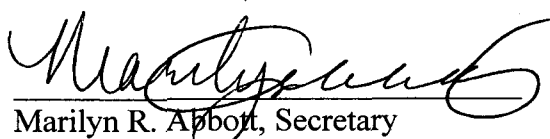
Charles E. Bullock
Administrative Law Judge

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CERTIFICATE OF SERVICE

I, Marilyn R. Abbott, hereby certify that the attached **ORDER** was served upon, **David O. Lloyd, Esq.**, Commission Investigative Attorney, and the following parties via first class mail and air mail where necessary on May 3, 2006.



Marilyn R. Abbott, Secretary
U.S. International Trade Commission
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Washington, DC 20436

FOR COMPLAINANT ROADMASTER (USA) CORP:

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PROPOSED RESPONDENT:

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